

Ajay Kumar v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 29 July 2011 · WRIT - C No. 42409 of 2011 · **Writ dismissed; petitioner relegated to clause 6.5 of the Supply Code.**

HEADNOTE

A consumer seeking mandamus for a corrected electricity bill after adjustment of amounts already paid has an efficacious remedy under clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ was dismissed, any application under the Code to be considered and decided.

FACTUAL SUMMARY

Ajay Kumar filed a writ petition seeking a mandamus directing the electricity authorities to issue a correct electric bill immediately after adjusting amounts he had already paid. The grievance related to a specific bill annexed as Annexure-8. The State of Uttar Pradesh and the distribution licensee (respondents 2 and 3) were represented. No other facts of the billing dispute were recorded.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correction-remedy

HOLDING

A consumer who disputes an electricity bill and seeks mandamus for a corrected bill after adjustment of amounts already paid must pursue the statutory remedy under clause 6.5 of the U.P. Electricity Supply Code, 2005; the writ is dismissed, any application under the Code to be considered and decided. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL (ANNEXURE-8) AND ADJUSTMENT OF AMOUNTS ALREADY PAID

Left to the clause 6.5 process. ¶ 1